

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST

REPUBLIC OF SRI LANKA

In the matter of an Appeal against the
Judgment and Sentence of the High Court
of Monaragala in terms of Section 331 of
the Code of Criminal Procedure Act.

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant

Court of Appeal Case No:

CA/HCC/0283/24

High Court of Monaragala Case No:

HC/283/2019

-Vs-

Senevirathne Mudiyansele Jayantha

Accused

AND NOW BETWEEN

Senevirathne Mudiyansele Jayantha

Accused-Appellant

-Vs-

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Complainant-Respondent

Before : **P Kumaratnam, J.**
Pradeep Hettiarachchi, J.

Counsel : Chamath Gamage with Hashini Pathirana for the Accused-
Appellant.
Shanaka Wijesinghe, A.S.G. for the Respondent.

Argued on : 27-03-2026

Decided on : 02-07-2026

Pradeep Hettiarachchi, J

Judgement

1. The Accused-Appellant (hereinafter referred to as “the Appellant”) was indicted before the High Court of Monaragala for the following charge;

On or about 23.02.2010, within the jurisdiction of the High Court of Monaragala, the Appellant, by using the Appellant’s genitals on any orifice or part of the body of a girl below 16 years, namely, Rathnayake Mudiyansele Sachini Nimanthika committed an offence of grave sexual abuse, which is an offence punishable under Section 365B (2)(b) of the Penal Code as amended by the Acts No. 22 of 1996, 29 of 1998 and 16 of 2006.

2. Upon the Appellant pleading not guilty to the charge, the matter was then taken up for trial before the High Court of Monaragala. At the conclusion of the trial, the Learned High Court Judge found the Appellant guilty of the charge and convicted him.

3. Accordingly, the Appellant was sentenced to eight years' rigorous imprisonment. In addition, the Appellant was ordered to pay a fine of Rs. 20,000/-, in default of which he is to undergo six months' rigorous imprisonment. The Appellant was further directed to pay a sum of Rs. 50,000/- as compensation to the prosecutrix, in default of which he is to undergo one year's simple imprisonment.
4. Being aggrieved by the said judgment and the sentence, the Appellant has preferred the present appeal to this Court.
5. The grounds of appeal advanced by the Appellant are as follows;
 - a. Did the Learned Trial Judge misdirect himself in evaluating the evidence of the prosecution.
 - b. The Learned Trial Judge has not properly analyzed the inconsistency of the prosecution's evidence.
 - c. Has the Learned Trial Judge failed to consider that the evidence led by the prosecution without calling independent witnesses does not prove the case against the Appellant beyond a reasonable doubt.
 - d. Did the Learned High Court Judge misdirect himself by not correctly evaluating the dock statement, and thereby was there a miscarriage of justice
 - e. Has the Learned Trial Judge failed to consider the matters in favor of the Appellant, and been deprived of a fair trial.
 - f. The Learned High Court Judge has failed to consider the lack of corroboration and the incredibility of the evidence led by the prosecution.
 - g. The Learned High Court Judge has failed to consider the improbability and impossibility of the prosecution's evidence.
 - h. Did the Learned High Court Judge fail to analyze PW1's testimony, which is inter se and per se.
6. At the time of the incident, PW1, the prosecutrix, was 06 years old. After returning home from school, she changed out of her school uniform and wore a gown. Thereafter, she climbed onto a wooden table situated in the living room together

with her brother. At the moment, her father invited them to have something to eat and proceeded to the kitchen.

7. While the father was in the kitchen, the Appellant approached the prosecutrix and touched her vaginal area with his hand and pressed her vagina. The prosecutrix immediately got down from the wooden table and informed her father of the incident. Upon proceeding from the kitchen to the living room, the Appellant fled from the scene. It is pertinent to note that the Appellant was a person well known to the prosecutrix from her childhood, as he resided in the same neighborhood and frequently visited her house.
8. Thereafter, the father of the prosecutrix proceeded to the Hambegamuwa Police Station and lodged a complaint regarding the incident. Following the complaint, Police Officers visited the prosecutrix's residence and escorted her to the Police Station to record a statement. Subsequently, she was referred to the Hambegamuwa Hospital for medical examination.
9. The next witness called by the prosecution to testify was PW2, the father of the prosecutrix, who testified that he is a farmer. He further stated that on the date of the alleged incident, he did not go farming, as he had to look after the prosecutrix after she returned home from school, since the prosecutrix's mother had gone in search of her brother. At the material time, several other persons, namely Sirisena, Some, Hinni, Kiriappuhamy, and Somarathne were present inside the house. After some time, all of them left the house except Sirisena, who remained therein. PW2 further testified that, prior to the prosecutrix returning home, a monetary dispute had arisen between himself and the Appellant. According to the evidence of PW2, he had kept a sum of Rs. 600/- in the kitchen to purchase fish, but the said money had gone missing at the material time. Shortly thereafter, Kiriappuhamy returned the said amount, stating that it had been given by the Appellant. However, according to his evidence, the said dispute had not escalated into a serious or prolonged conflict between them.

10. Thereafter, at about 1.30 p.m., the prosecutrix returned home from school, whereupon, PW2 placed her on a wooden table situated in the living room, changed her into a gown, asked her to wear an undergarment, and gave her something to eat before returning to the kitchen. Shortly thereafter, the prosecutrix ran to the kitchen and informed PW2 that the Appellant had touched her vaginal area.
11. Upon PW2 proceeding from the kitchen to the living room and questioning the Appellant regarding the said incident, the Appellant fled from the scene. Then, PW2 immediately proceeded to the Police Station after entrusting the prosecutrix to the care of his mother, made a complaint regarding the incident, and subsequently returned to the house together with the Police officers.
12. It is noteworthy that the evidence of PW2 further corroborated the evidence of the prosecutrix, and no material infirmities were marked therein that go to the root of the matter.
13. In addition, PW10, the Chief Investigating Officer, testified that the father of the prosecutrix came to the Police Station and made a complaint regarding the alleged incident.
14. Upon receiving the complaint, PW10, together with other Police Officers, proceeded to the scene of the offence, made observations regarding the place of the incident, instructed that statements be recorded from the witnesses, and thereafter proceeded to arrest the Appellant.
15. According to the police observations, the prosecutrix herself showed the wooden table as the place of the offence. Considering the tender age of the prosecutrix, such spontaneous identification of the location of the incident lends further assurance to the truthfulness and reliability of her testimony. This account further strengthens the credibility of the prosecution's case.

“ප්‍ර: ඒ අනුව මහත්මයා මෙම නිවසේ අපරාධ ස්ථානය හැටියට මහත්මයා කුමන ස්ථානයක්ද හඳුනා ගත්තේ?

උ: නිවසට ඇතුළු වන ඉදිරිපස සාලයේ දකුණු පස කෙළවරේ තිබෙන ලී මේසය මත තමයි මෙම සිදුවීම සිදුවී තියෙන්නේ. (vide pages 138-139 of the Appeal Brief)

ප්‍ර: මහත්මයාට ඔය අපරාධ ස්ථානය, එහෙමත් නැත්නම් ඔය මේසය පෙන්වල සිටියේ කවුද?

උ: වින්දිත දැරිය සහ වින්දිත දැරියගේ පියා.” (vide page 145 of the Appeal Brief)

16. The Learned Counsel suggested on behalf of the Appellant that the present charge had been fabricated due to a monetary dispute between the Appellant and the father of the prosecutrix, and that the prosecutrix had testified before the Court under the influence and instruction of her father. The prosecutrix denied these suggestions.

“ප්‍ර: තාත්තා එදා තමුන් ඉස්කෝලේ ඇරිලා එන්න කලින් උක්කුං මමත් එක්ක සල්ලි ප්‍රශ්නෙකට රණ්ඩු වෙලා සිටිය නිසා ඒ තරහයි, ඔය තමුන්ට පහරක් ගැහුව එකයි දෙකම එකතු කරලා තමුන්ට උක්කුං මාමා ලිංගික අතවරයක් කළා කියලා බොරු පැමිණිල්ලක් තාත්තා පොලිසියට දැමීමේ කියලා යෝජනා කරනවා?

උ: ඒ මගේ තාත්තා. එහෙම දෙයක් උන කියලා බොරුවට එහෙම. මම දන්නේ නැහැ ඔයා තාත්තා කෙනෙක් ද කියලා. මගේ තාත්තා එහෙම නැහැ.

ප්‍ර: තමුන්ගේ තාත්තා ඒ වගේ පැමිණිල්ලක් දැමීමට පස්සේ තමුන්ටත් උගන්වලා උක්කුං මාමා මගින් අතවරයක් වුනා කියලා බොරුවට පොලිසියට කියෙව්වා කියලා මම යෝජනා කරනවා?

උ: ඒ බොරු.” (vide page 100 of the Appeal brief)

17. Further, according to PW10, the alleged monetary dispute between the prosecutrix's father and the Appellant had not escalated into a serious matter as alleged.

“ප්‍ර: එතොකොට මහත්මයා ඔය විමර්ශනයේදී අනාවරණය වීමක් වුනා ද ඔය විත්තිකරු සහ පැමිණිලිකාර පියා අතර යම්කිසි ගැටුමක් ඔය පැමිණිල්ල ඉදිරිපත් වුන දවසේ ඔය පැමිණිල්ලට අදාල නොවන කාරණයක් සම්බන්ධව වෙලා තියෙනව කියලා

උ: ඔව්.

ප්‍ර: මොකක්ද ඒ කරුණ මහත්මයා?

උ: මේසය මත තිබුණු මුදලක් නැවත පැමිණ බලන අවස්ථාවේදී අදාල මුදල නොතිබීම නිසා වින්දිත දැරියගේ පියා සහ වුදිත අතර බහින් බස්වීමක් සිදු වෙලා තිබෙන බවට.

ප්‍ර: ඒ බහින් බස් වීමේදී ඒ වින්දිත දැරියගේ පියා විසින් මේ වුදිතට පහර දීමක් කරලා තියෙනවා කියලා විමර්ශනයේදී අනාවරණය උනාද?

උ: නැහැ. වින්දිත දැරියගේ පියා වුදිතව සොයා ගෙන ඔහුගේ ගෙදරට ගිහිල්ල ඉන් අනතුරුව නැවත වුදිතත් සමග වින්දිත දැරිය සමග ඔහුගේ නිවසට පැමිණීමේදී තමයි මේ සිදුවීම සිදු වෙලා තියන්නේ.” (vide page 141 of the Appeal Brief)

18. In these circumstances, it is difficult to accept that the father of the prosecutrix would have gone to the extent of fabricating such serious allegations, merely on account of a relatively trivial monetary dispute. Accordingly, it is my view that the nature of the allegation is of such seriousness that it is wholly improbable that it would have been fabricated for the recovery of a small sum of money.

19. In view of the foregoing evidence, the version of the prosecutrix is corroborated by clear and cogent evidence adduced through the independent witnesses. Therefore, the conclusion reached by the Learned Trial Judge that the charge against the Appellant had been proved beyond a reasonable doubt is legally sustainable.

20. It was contended by the Learned Counsel for the Appellant that the prosecution had failed to establish the offence of grave sexual abuse as set out in the indictment. The Learned Counsel further submitted that there exists a material inconsistency in the prosecution's evidence. However, in view of the foregoing reasons, there is no merit in this ground of appeal, as there is clear and cogent evidence adduced through independent witnesses, which evidence materially corroborated one another and sufficiently established the charge against the Appellant beyond a reasonable doubt.
21. With regard to the ground of appeal that the Learned High Court Judge failed to consider the improbability and impossibility of the prosecution's evidence, it is important to note that the prosecutrix disclosed the alleged incident to her father immediately after the occurrence of the alleged act, and the complaint was made on the very same day without delay. Such conduct demonstrates the spontaneity and genuineness of the complaint and is wholly consistent with the conduct of reasonably prudent persons placed in similar circumstances. Therefore, the evidence adduced by the prosecution cannot be said to be improbable or impossible as contended by the Appellant.
22. Further, another ground advanced by the Appellant is that the Learned High Court Judge has failed to properly evaluate the dock statement made by the Appellant.
23. In the dock statement, the Appellant stated that, while he was proceeding towards the paddy field, the father of the prosecutrix called him to his house to drink illicitly distilled liquor. The Appellant further stated that PW2 was engaged in the sale of illicitly distilled liquor. According to the Appellant, after consuming one glass of the said liquor, he proceeded towards the paddy field. Thereafter, while returning home, he was again called by PW2 to consume the same.
24. The Appellant further stated that PW2 assaulted him on the allegation that he had taken a sum of Rs. 700/- from him. Subsequently, according to the Appellant, PW2 assaulted him on the basis that the Appellant struck the back of the prosecutrix when she was touching an electric wire. The Appellant further stated that, while the father

of the prosecutrix was assaulting him, he fled from the scene. Thereafter, while he was sleeping at his house, his mother shouted that the police were coming, whereupon he ran away out of fear that he would be imprisoned for consuming illicitly distilled liquor.

25. Evidently, the dock statement made by the Appellant is insufficient to create a doubt in the prosecution's case, and fails to rebut the clear, cogent, and corroborative evidence adduced by the prosecution witnesses. Consequently, the said dock statement does not diminish the probative value of the prosecution's case.

26. Upon consideration of the foregoing analysis of law and facts, I find no merit in the arguments advanced on behalf of the defence. Accordingly, there is no basis to interfere with the judgment of the Learned High Court Judge, and the conviction is affirmed.

27. Accordingly, the appeal is dismissed.

Judge of the Court of Appeal

P. Kumararatnam, J

I agree

Judge of the Court of Appeal